

CARGILL FIELD

CONSERVATION RESTRICTION

BTA/BOLT, INC.

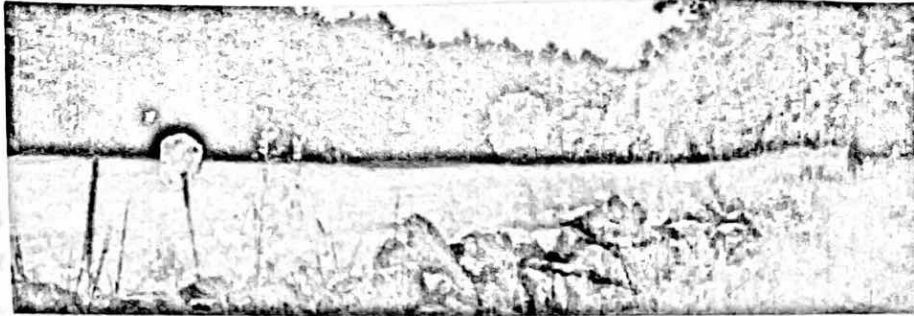
6/18/08

OFFICE COPY

HELP US PROTECT 14 1/2 ACRES OF AGRICULTURAL FIELDS & WOODLANDS LOCATED IN THE HEART OF BOXFORD'S EAST VILLAGE



Located on the corner of Main Street and Middleton Road, and running 1,500 feet along Fish Brook, the Cargill property provides important protection for our watershed.



The dramatic vista created by the agricultural fields, stretching away from the road and back to the woods, is an integral part of East Village.

PLEASE ATTEND BOXFORD'S ANNUAL TOWN MEETING MAY 8TH & 9TH AND VOTE IN FAVOR OF PRESERVING THIS PIECE OF BOXFORD.

19
75 R2

CONSERVATION RESTRICTION

The undersigned, Town of Boxford of Essex County, Massachusetts, and its successors and assigns (hereinafter "Grantor"), acting by and through its Board of Selectmen for nominal consideration of One Dollar (\$1.00) paid, hereby grants, with quitclaim covenants, and subject to all pre-existing rights and easements to BTA/BOLT, Inc. a Massachusetts not for profit corporation having its principal office at 7 Elm Street, Boxford, Massachusetts, its successors and permitted assigns (hereinafter "Grantee"), in perpetuity and exclusively for conservation purposes, a Conservation Restriction on parcels of land (the "Premises") located on Main Street and Middleton Road in Boxford, Essex County, Massachusetts containing approximately 14.5 acres described in Exhibit A attached hereto and made a part hereof For Grantor's title see deed recorded with Essex South District Registry of Deeds at Book 27333, Page 524.

I. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the Massachusetts General Laws and otherwise by law. Its purposes are to assure that the Premises will be retained in its open, scenic and undeveloped condition and to prevent any use of the Premises that will significantly impair or interfere with the conservation values of the Premises. The protected agricultural and conservation values and the public benefits resulting from the protection of the Premises in the manner provided in this Conservation Restriction include the following, without limitation:

A. The Premises provides significant scenic, outdoor educational and recreational value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses;

B. The Grantor and the Grantee recognize the uniqueness of the Premises as a distinctive Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural values of the Premises for this generation and future generations;

C. The Premises is part of a highly scenic landscape visible to members of the general public from Middleton Road and Main Street, both public ways;

D. The Premises is adjacent to other protected open space, thereby increasing the ecological viability and scenic values of the area;

E. The Premises contains a wide diversity of wildlife habitat, including wetlands, streams, ponds, upland forest and grasslands used by a variety of wildlife species;

F. The Premises maintains a hayfield, surrounded by a 9 plus acre woodland buffer, adding to the value of surrounding, comparable landscapes and pastoral scenic vistas;

G. The Premises abuts Fish Brook, an important watershed, which is itself a tributary of the Ipswich River, adjoins Howe's Pond, and contains freshwater wetlands and uplands, representing a diversity of plant and wildlife habitat; and

H. The Premises, under the permanent protection of a Conservation Restriction, is consistent with the goals and objectives set forth in the Town of Boxford 2001 and 2008 Open Space and Recreation Plan, the Community Preservation Act G.L. c. 44B, Section 12 (a) and the Boxford Annual Town Meeting vote of May 8, 2007 memorializing the requirement that the Premises remain permanently protected.

Therefore, in order to preserve the Premises in perpetuity in its present agricultural, natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended.

The terms of this Conservation Restriction are as follows:

II. PROHIBITED AND PERMITTED ACTIVITIES AND USES

A. Prohibited Activities and Uses. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses in, on, over or under the Premises:

1. Construction or placing of any temporary or permanent building, structure, facility or improvement on, over or under the Premises, including but not limited

to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground;

2. Dumping or placing of soil, grass clippings, compost, or other substances on the ground, except according to best management practices, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;

3. Cutting, removal, harvesting or destruction of trees, grasses, shrubs or other vegetation unless otherwise permitted in Paragraph B below;

4. Mining, excavating, dredging or removal from the Premises of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;

5. Any nonagricultural commercial use or activity, unless the activity is otherwise permitted in Paragraph B below, any residential or industrial use or activity, and any municipal use not related to the purposes of this Conservation Restriction;

6. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and farm vehicles used solely for purposes permitted by this Conservation Restriction as provided in Paragraph B below;

7. The use, landing, or storage of aircraft, helicopters, or similar machines or devices, except as reasonably required by police, firefighters or other emergency personnel or government agents in carrying out their lawful duties;

8. Use of the Premises in any manner or for any purpose except for agricultural, farming or outdoor passive recreational purposes or other purposes that permit the Premises to remain predominantly in its natural condition;
9. Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control or the removal, disturbance or other activities detrimental to wildlife or wildlife habitat;
10. Conveyance of a part or portion of the Premises alone, or division or subdivision of the Premises (as compared to conveyance of the Premises in its entirety which shall be permitted, subject to the provisions herein), without the prior written approval of the Grantee, whose approval shall not be unreasonably withheld;
11. The use of the Premises for camping, hunting, trapping or discharge of firearms except for the lawful control of vermin;
12. The use of the Premises for (a) transferring development rights to any property, whether or not the receiving land is adjacent to the Premises; (b) calculating permissible lot yield of any other land; and (c) use in any calculations involving development of any other land, whether or not adjacent to the Premises, in any manner whatsoever (except it may be used in calculating water supply if adjacent land is used for a municipal water supply resource);
13. In no event shall the Premises be used for commercial recreational activities; and
14. Any other use of the Premises or activity which is inconsistent with the purposes of this conservation restriction or which would materially impair significant conservation values unless such use or activity is necessary for the protection of the conservation values that are subject to this Conservation Restriction.

B. Reserved Rights: Exceptions to Prohibited Activities and Uses.

Notwithstanding the provisions of Paragraph A, the Grantor reserves the right to conduct or permit the following activities on the Premises provided that such uses and activities do not materially impair the purposes of this Conservation Restriction or other conservation values:

7. Activities designed to control exotic or invasive plant species on the Premises.

1. Within forested areas, in accordance with generally accepted silvicultural practices and generally accepted forest management practices, the selective removal, pruning and cutting of trees, shrubs and other vegetation to prevent, control, or remove hazards, disease or insect damage, or fire, all in accordance with a cutting plan approved by the Grantee;

generally accepted Integrated Pest Management (IPM) practices;

2. The erection and maintenance of a minimal number of signs with respect to (a) the location of boundary lines, (b) hunting and trapping (c) the identity and address of occupants or owners if applicable, (d) the placing of an educational kiosk and signs regarding species, habitat, trail map, parking and other historical or educational material;

3. The right, but not the obligation, to conduct ecological restoration activities to maintain and restore plant and wildlife habitat. Prior to commencing any restoration or maintenance activities, restoration plans shall be developed by the Grantor after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;

The agricultural field is not to be expanded or enlarged beyond its current location

4. Passive outdoor non-commercial recreational activities such as wildlife observation, walking, hiking, running, horseback riding, fishing, bicycling, snowshoeing, cross-country skiing, and other passive, noncommercial outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction, and consistent with Section III.B;

5. The right, but not the obligation, to selective removal or pruning of brush and trees along the roadside and stonewall abutting the Premises to preserve the agricultural vista in accordance with a plan approved by the Grantee and subject to the Scenic Roads Act, Shade Tree Act, and any other applicable Boxford or state regulations;

13. The vegetation may be allowed to include access for horses, kayaks and/or small row boats, to be approved by Grantee, which approval shall

6. Activities designed to enhance the ecological or natural historical value of the Premises, including wildlife habitat improvement after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;

14. requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

7. Activities designed to control exotic or invasive plant species on the Premises in accordance with a plan approved by the Grantee, whose approval shall not be unreasonably withheld;
8. Any pesticide product used on the Premises shall be used only pursuant to the provisions of Federal, State laws and regulations, the label and pursuant to generally accepted Integrated Pest Management (IPM) practices;
9. Construction and maintenance of trails for passive recreational activities listed in Paragraph 4 above;
10. Access and use of the Premises by the public in accordance with Section IV.B;
11. Continued use of the existing agricultural field in its current location, including the right to license the field for commercial harvesting of hay, grasses, or other agricultural products and crops (such as fruits, vegetables or livestock) in accordance with generally accepted agricultural practices. In the event the field is tilled, a winter cover crop will be timely planted to prevent the erosion of soil. The agricultural field is not to be expanded or enlarged beyond its current location nor shall any animal shelter or fencing be constructed without prior consultation and approval by the Grantee, whose approval shall not be unreasonably withheld. In the event Grantor is unable to maintain the field in order to preserve use and scenic quality of the site, the Grantee expressly reserves the right (but not the obligation) to maintain the site;
12. The Grantor may construct a small parking area to accommodate several cars to enable the public to safely access the Premises; this parking area to be approved by the Grantee, whose approval shall not be unreasonably withheld;
13. A small cut through the vegetation may be allowed to facilitate access for canoes, kayaks and/or small row boats, to be approved by Grantee, which approval shall not be unreasonably withheld; and
14. Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this Paragraph B shall be in compliance with the following: (a) then-current building, zoning, planning, and conservation regulations, bylaws applicable to the Premises, (b) any special permits or variances pertaining to the Premises, (c) the Wetlands Protection Act (General Laws Chapter 131, Section 40), and (d) all other applicable federal, state and local laws and regulations. The inclusion of any reserved right in Paragraph B of Section II requiring a permit from a public agency merely means that the Grantor may have a right to request a permit, it does not mean that the Grantee or the Executive Office of Energy and Environmental Affairs takes any position on whether such permit should be issued.

C. Unspecified Activities and Uses are Prohibited. All acts and uses not expressly permitted in Paragraph B of Section II are prohibited unless otherwise authorized by the Grantee pursuant to Paragraph D below.

D. Notice to and Approval by Grantee. Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may not be unreasonably withheld, but may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction. Failure by the Grantee to respond within that time period will be deemed an approval of the activity.

III. ACCESS

A. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises following reasonable notice and at reasonable times and in a reasonable manner

for the purpose of inspecting the Premises and determining compliance with the terms of this Conservation Restriction.

B. Access by the Public. The Grantor recognizes that certain portions of the Premises are presently used by the general public to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet passive outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities provided (1) that any such activity shall be limited to daylight hours only (unless otherwise permitted by Grantee); (2) that all such activities shall be confined to the limits of established trails or designated areas during the growing season (from April 1 through November 1); (3) that no motor vehicles of any kind shall be permitted except those used to assist handicapped individuals; (4) that no camping, hunting, trapping or discharge of firearms shall be conducted; (5) that no dumping, waste disposal, or littering of any kind be allowed; and (6) that no activity of a non agricultural commercial nature be allowed. The Grantor hereby reserves the right to alter the locations of established trails, after consultation with the Grantee and with the Grantee's approval, provided that as so relocated, neither the conservation values of this Conservation Restriction nor access to and passage through the Premises is impaired.

C. Access By The Fire Department. The Grantee recognizes that the Fire Department has the right to access an existing fire pond. This restriction in no way serves to terminate, extinguish or hinder such right.

IV. LEGAL RIGHTS AND REMEDIES OF THE GRANTEE

A. Legal and Injunctive Relief. The rights hereby granted include the right to enforce this conservation restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition prior to the time of the injury complained (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee.

B. Actions to Prevent or Remedy Violations. The Grantee shall have the right to take appropriate actions to prevent, abate, or remedy violations of this Conservation Restriction.

C. Reimbursement of Costs of Enforcement. The Grantor and the successors and assigns of the Grantor covenant and agree, to the extent permitted by law, to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred.

D. Grantee's Disclaimer of Liability. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises.

E. Non-Waiver by Grantee. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver.

F. Acts Beyond Grantor's Control. Nothing contained in this Conservation Restriction shall be construed to entitle Grantee to bring any action against Grantor for any injury to or change in the Premises resulting from causes beyond the Grantor's control, including but not limited to, fire, flood, storm and earth movement, public recreation, and acts caused by trespass on the Premises not contributed to by acts or omissions of the Grantor, of or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Premises resulting from such causes.

V. ASSIGNMENT BY GRANTEE

The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign all or a portion of its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes and, to the extent required by law, comply with the

provisions of Article 97 of the amendments to the Massachusetts Constitution. The Grantee shall notify the Grantor in writing at least thirty (30) days in advance of any such assignment, but the failure of the Grantee to do so shall not impair the validity of this Conservation Restriction or limit its enforceability in any way.

VI. SUBSEQUENT TRANSFERS

A. Reference to Conservation Restriction in Future Deeds. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Premises, including without limitation, any leasehold interest or option.

B. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

VII. EXTINGUISHMENT

A. Termination or Extinguishment. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish.

B. Grantee's Receipt of Property Rights. The Grantor and Grantee agree that if this Conservation Restriction should ever be terminated or extinguished, the proceeds, if any, shall first be distributed to the Grantor, or their successors or assigns, for the purchase of other land in Boxford for similar conservation and recreational purposes as stated herein and Grantor shall convey to Grantee a conservation restriction on such land similar in form and purpose to the conservation values stated herein. If, within 30 days of such termination or extinguishment, no other similar land is available for purchase by Grantor, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value described in Paragraph C below, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

C. Value of Grantee's Property Right. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise, for purposes of this paragraph, to a property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction, determined at the time of the gift, bears to the value of the unrestricted Premises at that time and represents all land development rights associated with the Premises. Such proportionate value of the Grantee's property right shall remain constant.

D. Cooperation Regarding Public Auction. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed to the Grantor for the purchase of similar conservation land as provided in Paragraph B and in the event that no similar conservation land is available for purchase, then the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value as described in Paragraph C above.

E. Continuing Trust after Disposition of Conservation Restriction. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth herein.

VIII. BINDING EFFECT: INTERPRETATION

A. **Running of the Benefit.** The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee shall have the right to assign its interests herein to the extent and in the manner provided in Section V.

B. **Running of the Burden.** The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. **Termination of Rights and Obligations.** Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Premises shall terminate upon transfer of that party's interest in the Premises. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. **Prior Encumbrances.** This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Premises and the rights granted hereby are subject to the encumbrances listed on Exhibit B attached hereto and made a part hereof.

E. **Pre-Existing Rights of the Public.** The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Premises. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. **Execution of Instruments.** The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction. The Grantor and its successors and assigns agree to execute any such instrument its review and approval.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the appropriate Essex County Registry of Deeds.

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the policies and purposes of M.G.L. Chapter 184, Sections 31-33. If any provision of this instrument is found to be ambiguous, an interpretation consistent with the purposes of this Conservation Restriction that would render it valid shall be adopted over any interpretation that would render it invalid. If any provision or condition of this Conservation Restriction shall be declared invalid, the remaining provisions shall not be affected.

J. Entire Agreement. This instrument sets forth the entire agreement of the parties regarding this Conservation Restriction and supersedes all prior discussions, negotiations, understandings or agreements.

K. Non-Merger. No future assignment of Grantor's or Grantee's interest in the Premises or future acquisition of any interest in the Premises by Grantor or Grantee shall cause this Conservation Restriction to merge with the fee or render any terms unenforceable pursuant to the so-called Doctrine of Merger.

L. Notices. Any notice, demand, request, consent, approval, or other communication that either party desires or is required to give pursuant to this Conservation Restriction is deemed delivered upon receipt and shall be in writing and delivered by hand, by facsimile or by first class mail and addressed as follows:

To Grantor: Town of Boxford
Board of Selectmen
Boxford Town Hall
7A Spofford Road
Boxford, MA 01921

With a copy to

Grantor's attorney:

Kathleen M. O'Donnell, Esq.
Kopelman & Paige, P.C.
101 Arch Street
Boston, MA 02110
or Grantor's successor attorney

To Grantee:

BTA/BOLT, Inc.
7 Elm Street, P.O. Box 95
Boxford, MA 01921

IX. ESTOPPEL CERTIFICATES

Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor a written certificate of compliance in recordable form which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

IN WITNESS WHEREOF, the said Board of Selectmen of the Town of Boxford have hereunto set their hands and seals this 28th day of April, 2008.

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on April 28th, 2008 the Selectmen voted to approve the foregoing Conservation Restriction to the BTA/BOLT, Inc. for the preservation of the natural resources of said Town and being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

**TOWN OF BOXFORD
BOARD OF SELECTMEN**

Stephen Davis [Signature]
Barbara L. Boardley Peter C. Pulini
Barbara D. Gould _____

COMMONWEALTH OF MASSACHUSETTS

ESSEX, SS.

On this 28th day of April 2008, before me, the undersigned notary public, personally appeared STEPHEN A. DAVIS, Selectman of the Town of Boxford Board of Selectmen, proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as Selectman on behalf of the Town of Boxford.

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010


Notary Public
My commission expires: 3/12/2010

ACCEPTANCE OF GRANT

BTA/BOLT, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

BTA/BOLT, Inc.

By: Natasha Grigg
Name: Natasha Grigg
Title: President
Hereunto duly authorized

By: David Ingalls
Name: David Ingalls
Title: Treasurer
Hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

ESSEX, SS.

On this 29th day of April 2008, before me, the undersigned notary public, personally appeared David Ingalls, Treasurer and Natasha Grigg, President proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the persons whose names are signed on the preceding document, and acknowledged to me that they signed it voluntarily on behalf of BTA/BOLT, Inc. for its stated purpose.

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010


Notary Public
My commission expires: 3/12/2010

COMMONWEALTH OF MASSACHUSETTS
MUNICIPAL CERTIFICATION

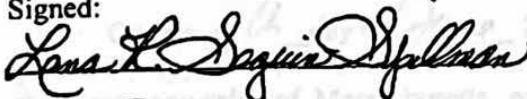
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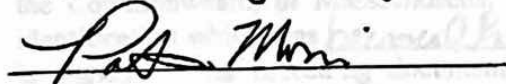
(We) the undersigned Conservation Commission of Boxford, Massachusetts (the certifier), hereby certify that the proposed conservation restriction is in the public interest in that it is a superb scenic wild area at the intersection of two of the town's main thoroughfares, i.e., Main Street and Middleton Road, adjoining other protected open space which provides a wide scope of biological diversity, both animal and plant life, wetlands, a brook, pond, agricultural land and upland forest.

This parcel of agricultural land, kept under permanent protection by a conservation restriction, will be consistent with the goals, endeavors, and objectives as enumerated in the Town of Boxford's Open Space and Recreation Plan, the Community Preservation Act.

Dated: April 17 2008

Signed:





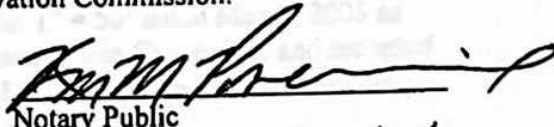


COMMONWEALTH OF MASSACHUSETTS

ESSEX, SS.

On this 17th day of April 2008, before me, the undersigned notary public, personally appeared LANA R. SEGUIN SPILLMAN, a member of the Town of Boxford Conservation Commission, proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as a member of the Boxford Conservation Commission.

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010


Notary Public

My commission expires: 3/12/2010

APPROVAL BY SECRETARY OF ENERGY
AND
ENVIRONMENTAL AFFAIRS

The undersigned Secretary of Energy and Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the BTA/BOLT, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date: 6/4/08


Secretary of Energy and Environmental
Affairs

COMMONWEALTH OF MASSACHUSETTS


ESSEX, SS.

On this 4th day of June 2008, before me, the undersigned notary public, personally appeared Ian A. Bowles, Secretary of Energy and Environmental Affairs of the Commonwealth of Massachusetts, proved to me through satisfactory evidence of identification which was personal knowledge to be the person whose name is signed on the preceding document, and acknowledged to me that he signed it voluntarily, as Secretary, for its stated purpose.


Notary Public

My commission expires: 12/15/2011